

26STCP00278 26STCP00278

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-18

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Case Number: 26STCP00278 Hearing Date: September 18, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Andrea Sessions' Petition to Confirm Arbitration Award is dismissed.

Analysis:

On January 16, 2026, Petitioner Andrea Sessions ("Petitioner"), in propria persona, filed the instant Petition to Confirm Arbitration Award (the "Petition") against Respondent Kevin He ("Respondent"). The hearing on the Petition was initially set for May 22, 2026, and then continued to June 12, 2026 due to the Court's unavailability. (Notice of Hearing, 01/16/26; Minute Order, 04/14/26.)

At the hearing on June 12, 2026, the Court ruled that although Petitioner filed a Notice of Hearing Date, no proof of service of the Petition or of the Notice of the Hearing Date was on file. (Minute Order, 06/12/26.) The Court continued the hearing to August 7, 2026 to give Petitioner an opportunity to provide Respondent with proper notice of the Petition and the new hearing date. (Ibid.)

On August 3, 2026, Petitioner filed a Proof of Service by Mail indicating that the Petition and Notice of New Hearing Date were served upon Respondent on July 20, 2026, by first-class mail. (Proof of Service by Mail, filed 08/03/26, ¶¶4-5.) On August 6, 2026, Petitioner filed a similar proof of service, showing service of the Notice of Hearing and Petition upon Respondent by certified mail with return receipt. (Proof of Service by Mail, filed 08/06/26, ¶¶4-5 and p. 2.) The return receipt included a signature, although it is not legible and no printed name was included to identify the

person who signed.

The proof of service filed on August 6, 2026 was not filed in time for the Court to consider it for the hearing on August 7, 2026. Accordingly, the Court will consider it now. The Court's previous order had cited the relevant statutory provisions under which service must be effectuated. Specifically, that Code of Civil Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent "in the manner provided in the arbitration agreement for the service of such petition and notice" or "[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action." (Minute Order, 06/12/26, citing Code Civ. Proc., § 1290.4, subds. (a), (b).)

The parties' arbitration agreement does not provide for the manner of service of the Petition and Notice of Hearing. (Pet., Supp. Sessions Decl., filed 04/23/26, Exh. A.) Therefore, the Petition to Confirm and Notice of Hearing must be served upon Respondent in the manner of service for a summons. Service by certified mail with return receipt requested is an authorized method for service of a summons upon an out-of-state party. (See Code Civ. Proc., § 415.40.) Said service is effective on the tenth day after mailing. (Code Civ. Proc., § 415.40.) The Petition and Notice of Hearing were served on Respondent by certified mail with return receipt requested on July 20, 2026, making the effective date of service July 30, 2026. Petitioner, however, was required to provide Respondent with at least ten days' notice of the Petition and Notice of New Hearing Date prior to the new hearing date. (Code Civ. Proc., § 1290.2.) Service on July 30, 2026 only gave Respondent eight days' notice of the hearing. It was for this reason that the Court had expressly ordered Petitioner to file the proof of service by July 10, 2026. (Minute Order, 06/12/26.) Petitioner, however, did not file the proof of service until August 7, 2026, which not only violated the Court's order, but also resulted in a lack of sufficient notice to Respondent. It also deprived the Court of an opportunity to address the sufficiency of the service at the hearing on August 7, 2026.

The Court granted another continuance and again ordered Petitioner to file proof of service of the Petition and Notice of New Hearing Date in accordance with the statutory requirements by August 28, 2026. (Minute Order, 08/07/26.) The Court also expressly ordered Petitioner to file the proof of service on Judicial Council Form POS-010 and warned that failure to comply with the order may result in the Petition being denied. (Ibid.) To date,

Petitioner has not filed a new proof of service of the Petition or of the notice of new hearing date. Absent proof of service and notice of the hearing, the Court cannot act on the Petition. Accordingly, the Court will dismiss this proceeding. (See Code Civ. Proc., § 1286.)

Conclusion

Petitioner Andrea Sessions' Petition to Confirm Arbitration Award is dismissed.

Judicial Assistant to give notice.